

Mat.App./15/2022 on 14 November, 2022

Author: Soumitra Saikia

Bench: R.M. Chhaya, Soumitra Saikia

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GAHC010239802019

Judgment delivered on 14/11/2022

THE GAUHATI HIGH COURT
(HIGH COURT OF ASSAM, NAGALAND, MIZORAM AND ARUNACHAL PRADESH)

MAT APPEAL NO.15 OF 2022
SRI MANASH SARMA,
(Aged about 50 years),
Son of Late Mukunda Sarma,
Resident of Flat No. 102, Block No. A1,
Santigram Housing Complex, Jayanagar,
Beltola, Guwahati-781022, Post Office-
Khanapara, Police Station-Basistha, District-
Kamrup (Metro), Assam.

At present residing at:

Nong Malki Road, Shilling-793001, P.O &
P.S.-Shilling, East Khasi Hills District.,
Meghalaya.

.....Appellant

-Versus-

1. SMT. MAITREYEE SABHAPANDIT,
Aged about-43 years
Wife of Sri Manash Sarma
Daughter of Sri Haren Sharma

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Resident of- Flat No. 102, Block No. A1,
Santigram Housing Complex, Jayanagar,

Beltola, Guwahati-781022, Post Office-
Khanapara, Police Station-Basistha,
District-Kamrup (Metro), Assam.

.....Respondent

-B E F O R E -

HON'BLE THE CHIEF JUSTICE MR. R.M. CHHAYA HON'BLE MR. JUSTICE SOUMITRA SAIKIA
Advocate for the appellant : Mr. A. Das, Advocate. Advocate for the respondent : Mr. S. R. Gogoi,
Advocate JUDGMENT & ORDER (Soumitra Saikia, J) This appeal is directed against the Order
dated 22.02.2019 passed by Principal Judge, Family Court No.1, Kamrup, Guwahati, Assam in Misc
(J) Case No. 157/2018.

2. The respondent in this Matrimonial Appeal, as an applicant filed Misc (J) Case No. 157/2018
before the Principal Judge, Family Court No.1, Kamrup, Guwahati, which is an application under
Section 24 of the Hindu Marriage Act, 1955, praying for maintenance pendente-lite Page No.# 3/20
and the cost of proceedings.

3. The case projected by the respondent as an applicant before the Family Court No.1, Kamrup,
Guwahati was that the applicant and her husband (the appellant herein) got married on 12.06.2015
according to Hindu rites and customs at Kamakhya Temple, Guwahati. The ancestral house of the
husband is in Shillong in the State of Meghalaya. Till about August, 2015 both the husband and wife
lived together in Shantigram Housing Complex, Beltola. Because of his work, which requires him to
travel to Lower Assam regions, like Barpeta, Dhubri, Nagerbera etc, the appellant husband usually
stayed outside his home and used to come back for only about 7 (seven) days in a month. The father
of the appellant suffered from illness and expired shortly thereafter. When the respondent wife went
to Shillong to attend the srahdha ceremony of her father-in- law, she was not allowed to stay in the
ancestral house by the husband on one pretext or the other.

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4. The wife stated that she used to stay alone in the flat in Beltola, Guwahati and meet all the
expenses like, electricity bills, society dues, paper bills, gas cylinder dues etc. from the financial
assistances offered by her father. The husband did not take care of such expenditure and did not
even attempt to her when she was suffering from some illness. The respondent wife contended
before the Family Court No.1, Kamrup, Guwahati that she was an unemployed lady and has no
independent sources of income sufficient for her maintenance and that the husband was a habitual
drinker. He used to come home very late at night, at about 11.00 p.m. and refused to co-habit with
the respondent wife. It is the case of the respondent wife that the husband went to Shillong with his
mother on 13.03.2016 and thereafter did not come to his Guwahati residence for about 1 (one) year
8 (eight) months. When the wife went to visit the husband in Shillong in November, 2016, she was
misbehaved with and even physically assaulted by her mother-in-law with the help of her maid
servants.

Page No.# 5/20 Consequently, an FIR was lodged by the wife in Shillong. Thereafter, the husband along with his mother came to the residence of the wife in Beltola, Guwahati on 18.11.2017. The mother-in-law was pressurizing her son namely, the husband to get separated from the respondent wife. In this connection an FIR was lodged by the respondent wife before the Basistha Police Station, which was registered as Case No. 1098/2017 under Section 498 (A) of IPC. The FIR was lodged on 30.11.2017. Because of physical and mental torture by the husband and his mother, the respondent wife also filed a Domestic Violence case before the Chief Judicial Magistrate, Kamrup (M), Guwahati, which was registered as Misc (DV) Case No.15m/2018 under Section 12 of the Protection of Women from Domestic Violence Act, 2005, which is pending before the Judicial Magistrate First Class, Kamrup (M) at Guwahati. In the said case, the Court had also granted an amount of Rs.4000/- (Rupees four thousand) only as ad-interim maintenance to the petitioner. She had also filed another case before the Family Court Page No.# 6/20 seeking Restitution of Conjugal Rights, which is presently pending before the Family Court No.1., Kamrup (M), Guwahati. The respondent wife contended that after filing of the Domestic Violence case and the case for Restitution of Conjugal Rights, the appellant husband filed a Divorce case before the Family Court No.1, Kamrup (M), Guwahati, which is numbered as F.C. (Civil) Case No. 717/2018 and which is pending disposal. The respondent wife contended that the husband is a Mechanical Engineer by profession and is undertaking contractual works in various Government departments and he is associated with some big projects. Besides these, the husband and his mother have big house and also 7 (seven) houses, which they rent out to tenants in Shillong. Accordingly, the respondent wife in the application filed under Section 24 of Hindu Marriage Act, 1955 prayed for a direction to the husband to pay maintenance pendent- lite @ Rs.30,000/- (Rupees thirty thousand) only per month for herself.

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5. The appellant husband as the Opposite Party before the Family Court No.1, Kamrup, Guwahati, raised objections on the prayer of the petitioner. It was contended that the respondent wife was highly educated person with M. Sc (IT) degree and B.Ed and she was working as a teacher. On the contrary, the husband contended that he used to work for different organizations outside Assam but had to return to Assam about 25 years back due to the ill health of his father. However, inspite of his attempts to do some business after his return to Assam, he had failed because of the Assam movement. He, therefore, started earning his livelihood as a Free Lance Consultant and is associated with certain State Government Contractors. However all the projects have been shut down for the past couple of years because of non-payment of bills by the State Government. Further it was contended that the properties in Shillong and Guwahati do not belong to him. He contended that the respondent wife was a quarrelsome person and unruly by nature and never paid heed to any kind of suggestion, and Page No.# 8/20 used to issue threats to him and his parents to behave as per her whims and demands, failing which she will go to the Police, Commissions etc. It was contended that she used to abuse and threaten the husband and his parents and out of shock and agony, the husband's father expired on 01.08.2015. The husband himself met with an accident and because of injury sustained was bed ridden for more than 22 days. It was contended that the husband used to pay Rs.8,000/- (Rupees eight thousand) only to Rs.10,000/- (Rupees ten thousand) only since marriage although she was employed as a Teacher in School until the month of October, 2016. It was

contended that he thereafter paid Rs.70,000/- (Rupees seventy thousand) only to help her to get a job at a fixed salary of Rs.22,000/- (Rupees twenty two thousand) only as a teacher in an NGO, Nalbari Zila Samaj Sewa Sangha, which is funded by the Ministry of Social Welfare, Government of India. He denied the contentions of the respondent wife that she is an unemployed person. He also denied the contentions of the Page No.# 9/20 respondent wife regarding the payment of expenditure incurred in respect of the flat in which the respondent wife had been residing since her marriage with the husband. It was contended that all expenses incurred in respect of the said flat were paid by the husband.

6. The Family Court No.1, Kamrup, Guwahati upon hearing the parties allowed the application and directed the appellant husband to pay an amount of Rs.8000/- (Rupees eight thousand) only as maintenance pendent-lite to the applicant wife with effect from the date of the order. The Family Court No.1, Kamrup, Guwahati also directed the husband to pay an amount of Rs.10,000/- (Rupees ten thousand) only as the cost of proceedings within a period of 2 (two) months from the date of the Order.

7. Being aggrieved, the present appeal has been preferred before this Court by the appellant-husband. This appeal has been preferred on the following grounds:-

Page No.# 10/20 "GROUNDS (A). For that the Learned Principal Judge, Family Court No.1, Kamrup (Metro),Guwahati has failed to appreciate the pleadings of the Appellant as well as the submission made by him in course of hearing, in it's proper prospective and committed grave injustice to the Appellant while passing the impugned order.

(B). For that the Learned Trial Court although mentioned, in detail, in it's impugned order dated 22.02.2019 the submission of the Appellant as regards the capacity of the Appellant, has not applied her mind and passed the impugned order mechanically as well arbitrarily ignoring the contentions of the Appellant.

(C). For that the Learned Trial Court while granting the maintenance pendente-lite under section 24 of the Hindu Marriage Act, 1955 ought to have decided taking into consideration the order dated 04.07.2018 passed by Learned JMFC Smti. M. Devi, Kamrup (Metro), Guwahati in Misc. (DV) Case No. 15M/2018 for allowing interim order of maintenance pendent-lite of Rs. 4000/- (Rupees Four Thousand) only per Page No.# 11/20 month, which the Appellant has been paying regularly. (D). For that the impugned order dated 22.02.2019 in Case No. Misc (J) 157/2018 granting cost of litigation amounting to Rs. 10000/(Rupees Ten Thousand) only and maintenance pendente-lite @ Rs. Rs. 8000/(Rupees eight Thousand) only per month ignoring the capacity of the Appellant who is pulling on somehow by earning Rs. 10000/(Rupees Ten Thousand) to Rs. 15000/(Rupees Fifteen Thousand) only per month as free lance consultant.

(E). For that the impugned judgement and order dated 22.02.2019 as aforesaid is not legal, correct and proper and the Learned Trial Court while granting the maintenance pendente-lite ignoring the fact that the Respondent is highly qualified and had been working as Head Mistress in a school in Nalbari under an N.G.O drawing a salary of Rs. 22,000/-

(Rupees Twenty Two Thousand) only per month, and intentionally left the job after working there for a period of 8 months.

(F). For that the impugned order dated 22.02.2019 was passed by the Learned Court below ignoring that the Page No.# 12/20 Respondent has been residing in the house (Flat) in the name of the mother of the Appellant compelling the Appellant and his mother to leave the said flat due to her regular quarrel, misbehavior, torture and also threatening the Appellant and his mother for transferring the said Flat in her name. (G). For that the Appellant has been making regular payment in connection with the electricity bill, society maintenance charge, municipal tax and other allied expenditures in connection with the Flat in which the Respondent has been residing and as such ignoring the above circumstances the impugned order passed by the Learned Trial Court overlooking the object and the ingredients of section 24 of the Hindu Marriage Act, 1955 which is not legal, correct and justified, in as much as in the instant case the Respondent is capable of maintaining herself and that she has been living separately at her own will deserting the Appellant and his mother who is the actual owner of the said Flat and as such the impugned order is liable to be set aside. (H). For that the Learned Trial Court has failed to appreciate the pleadings as well as the oral submission of the Appellant in Misc (J) Case No. 157/2018 and has committed grave Page No.# 13/20 irregularity and illegality in passing the impugned order without considering the factum of the capacity of both the parties which is the prime consideration in granting maintenance pendente-lite and as such the impugned order is liable to be set aside.

(I). For that this petition is filed bonafide and in the interest of justice and the Appellant craves leave of the Hon'ble Court to advance further grounds and place relevant rulings of the Hon'ble Court at the time of final hearing of the instant Matrimonial Appeal, if required".

On the grounds urged as above, the appellant husband has prayed for setting aside of the Order dated 22.02.2019 passed by Principal Judge, Family Court No.1, Kamrup (M) in Misc (J) Case No. 157/2018.

8. The learned counsels for the parties have been heard. Pleadings on record have been perused. The Lower Case Records called for from the Family Court has also been carefully perused. It is seen that the Family Court had arrived at a finding that the wife had no independent Page No.# 14/20 income or means to support her. The family Court on the facts narrated before the Court came to a finding that the burden of prove that the respondent wife had independent income, was on the husband as he had contested the claim of the wife that she had no independent income. Although, the husband contended that the wife was gainfully employed earning about Rs.22,000/- (Rupees twenty two thousand) only per month, no evidence to that effect were brought before the Family Court. Consequently, there were no materials placed before the Family Court to arrive at a finding that the

contentions made by the wife that she had no independent income, to be incorrect. That apart the Family Court has also coming to a finding that the husband did not adduce any evidence showing his income to support his contention that he will not be in a position to maintain the respondent wife.

9. Before this Court, the appellant husband enclosed certain vouchers and receipts showing payment of electricity dues and housing society dues and some medical bills. This Page No.# 15/20 Court by an Order dated 05.08.2022 while referring the parties to Gauhati High Court Mediation Centre for exploring the possibility of resolving the dispute amicably, directed the appellant to produce his source of income and copies of last two years' income tax return along with the details of his service and/or profession. The appellant was further directed to deposit an amount of Rs.10,000/- (Rupees ten thousand) only before the Registry of the Gauhati High Court. In response to the said directions given by this Court, the appellant filed an additional affidavit wherein it is averred that an amount of Rs.10,000/- (Rupees ten thousand) only as directed was deposited before the Registrar General, Gauhati High Court. However, in response to the direction to file the copies of his income tax returns, the appellant contended that he earns only about a sum of Rs. 10,000/- to Rs.15,000/- approximately per month and in view of his meagre income he is not required to file in his income tax return. It was further contended that owing to Covid-19 pandemic the field supervision and survey works Page No.# 16/20 that he used to get from some Engineers also got minimized. The residential flat in which the respondent is residing at present belonged to his deceased mother and who had in turn bequeathed the said property to the younger brother of the appellant. Accordingly, having no alternative, the appellant is residing in a one room accommodation of his friend at Shillong It was further contended that in terms of the directions by this Court the appellant had appeared before the Mediation Centre, but the respondent did not appear before the mediator and consequently the matter could not be resolved through mediation.

10. We have given our anxious consideration to the contentions made by the learned counsels for the parties. In *Manish Jain Vs Akanksha Jain* reported in (2017) 15 SCC 801, the Apex Court was examining Section 24 of the Hindu Marriage Act, 1955. The Apex Court held that if it appears to the Court that there is no independent income or any independent income sufficient to support the husband or Page No.# 17/20 the wife as the case may be, then upon an application by either of the parties, the Court in its discretion can order for maintenance pendente lite or for the cost of proceedings. The Apex Court held that :

"12. The Court exercises a wide discretion in the matter of granting alimony pendent lite but the discretion is judicial and neither arbitrary nor capricious. It is to be guided on sound principles of matrimonial law and to be exercised within the ambit of the provisions of the Act and having regard to the object of the Act. The Court would not be in a position to judge the merits of the rival contentions of the parties when deciding an application for interim alimony and would not allow its discretion to be fettered by the nature of the allegations made by them and would not examine the merits of the case. Section 24 of the HM Act lays down that in arriving at the quantum of interim maintenance to be paid by one spouse to another, Page No.# 18/20 the Court must have regard to the appellant's own income and the income of

the respondent."

11. In the facts of present case, it is seen that the appellant husband although contested the claims made by the respondent wife, did not adduce any evidence before the Family Court to counter the claims the respondent wife that she does not have any independent income to support herself. The Family Court had also held that the husband did not bring on record any evidence to show his income. Even before this Court, although a direction was issued vide Order dated 05.08.2022 directing the appellant to file his return of income for the past 2 (two) years, the husband failed to do so on the ground that his monthly income is Rs.10,000/- (Rupees ten thousand) only to Rs. 15,000/- (Rupees fifteen thousand) only and therefore, he is not required to file his return of income. It is also seen that under Section 24 of the Hindu marriage Act, 1955, a Court has discretion to award maintenance and/or cost of proceeding pendente-lite, it is not disputed that divorce Page No.# 19/20 petition is presently pending before the Family Court. It is also not disputed that the prayers made by the respondent wife were not countered by any evidence to the contrary brought by the husband.

12. Under the circumstances, the impugned order dated 22.02.2019 passed by the Family Court No.1., Kamrup (M), Guwahati cannot be faulted with. On the facts of the case, the Family Court correctly exercised its jurisdiction of awarding maintenance pendente-lite on the prayers made by the respondent wife.

13. As discussed above, the prayers were made for grant of Rs.30,000/- (Rupees thirty thousand) only as maintenance pendente-lite and the Family Court has granted Rs.8,000/- (Rupees eight thousand) only in terms of the prayers made. Consequently, there is no merit in this appeal and the appeal is accordingly dismissed.

14. No order as to cost.

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15. LCR returned forthwith. The Family Court No.1, Kamrup is requested to expeditiously dispose of the matrimonial appeal.

JUDGE

CHIEF JUSTICE

Comparing Assistant